

Jeffrey J. Hunt (5855)
David C. Reymann (8495)
Carissa A. Uresk (18114)
PARR BROWN GEE & LOVELESS
101 South 200 East, Suite 700
Salt Lake City, Utah 84111
Telephone: (801) 532-7840
jhunt@parrbrown.com
dreymann@parrbrown.com
curesk@parrbrown.com

Attorneys for the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists

C. Michael Judd (14692)
PARSONS BEHLE & LATIMER
201 South Main Street, Suite 1800
Salt Lake City, Utah 84111
Telephone: (801) 532-1234
mjudd@parsonsbehle.com

Attorneys for The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network

**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA MOTION TO AMEND
MINUTE ENTRY ORDER TO ALLOW
USE OF PORTABLE ELECTRONIC
DEVICES BY THE NEWS MEDIA
AND THEIR COUNSEL**

Case No. 251403576

Hon. Tony F. Graf, Jr.

MOTION AND RELIEF SOUGHT

The News Media, through its undersigned counsel, hereby moves the Court to amend its Minute Entry Order Re: Electronic Devices in Courtroom Prohibited During Preliminary Hearing (“Minute Entry Order”) (Dkt. 632) to allow the News Media and their counsel to silently use their portable electronic devices in the courtroom during the duration of the preliminary hearing in this matter.

Except for legal counsel and support staff for the defense and State, counsel for the Victim's Representative, and equipment used to provide electronic media coverage, the Minute Entry Order prohibits use of portable electronic devices in the courtroom during the preliminary hearing. The prohibition makes immanent sense for members of the public and others attending the preliminary hearing to safeguard against potential disruption and/or the inadvertent or intentional use of portable electronic devices to capture or transmit video or audio of the proceedings in violation of Court rules. That potential danger is compounded because members of the public and others may lack knowledge of and experience with the Court's rules restricting the use of such devices.

Representatives of News Media and their counsel, however, are situated differently than members of the public. News Media representatives and their counsel are fully aware of the restrictions imposed by Rule 4-401.02(3) of the Utah Code of Judicial Administration ("Rule"), and have used their portable electronic devices at every hearing in this case to perform their journalistic and legal responsibilities without disruption or incident. Further, journalists reporting on judicial proceedings rely heavily on their electronic devices, including, in particular, laptop computers, to take notes, compose news stories, and send updates on the proceedings in real time. This serves the public interest in receiving timely and accurate information about the proceedings.

While the Rule authorizes the Court to restrict the use of portable electronic devices, ***“[j]udges are encouraged not to impose further restrictions unless*** use of a portable electronic device might interfere with the administration of justice, disrupt the proceedings, pose any threat to safety or security, compromise the integrity of the proceedings, or threaten the interests of a minor.” UCJA 4-401.02(3)(B)(iii). Representatives of the News Media and their counsel have

given the Court no reason to believe they will not continue to use their portable electronic devices in the courtroom in a responsible manner and in compliance with the Rule. And there is no reason to believe that such use will threaten any of the interests sought to be protected in the Rule.

Counsel for the State have indicated they have no objection to modification of the Minute Entry Order as requested in this Motion. Counsel for the defense have advised they oppose the Motion.

Accordingly, the News Media respectfully request that the Court amend its Minute Entry Order to allow representatives of the News Media and their counsel to use their portable electronic devices during the duration of the preliminary hearing.

RESPECTFULLY SUBMITTED this 1st day of July 2026.

PARR BROWN GEE & LOVELESS

/s/ Jeffrey J. Hunt

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